

**OFFICE OF THE SECRETARY**

P.O. Box 942883  
Sacramento, CA 94283-0001



July 9, 2018

Honorable Joseph Kalashian  
Judge of the Superior Court  
County of Tulare  
221 South Mooney Boulevard, Rm 303  
Visalia, CA 93291

Re: Madrigal, Ruben  
CDC No.: F09401  
Case No.: VCF146315b  
Date of Sentence: October 27, 2005

Dear Honorable Joseph Kalashian:

The purpose of this letter is to provide the court with authority to resentence Ruben Madrigal pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Madrigal was sentenced in 2005, and was convicted of section 245, subdivision (a)(2), Assault w/a Firearm. The trial court sentenced inmate Madrigal on October 27, 2005. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Madrigal's Section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Madrigal's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

  
SCOTT KERNAN  
Secretary

Enclosures:  
Abstract of Judgment-Prison Commitment-Determinate  
Minute Order  
Amended Felony Information

cc: Honorable Bret D. Hillman, Tulare County Presiding Judge  
Tulare District Attorney  
Public Defender

**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE**  
**[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]**

CR-290

|                                                                           |                                 |                                                                                         |                                                                                                                                                                    |  |                      |
|---------------------------------------------------------------------------|---------------------------------|-----------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|----------------------|
| SUPERIOR COURT OF CALIFORNIA, COUNTY OF: <b>TULARE</b>                    |                                 |                                                                                         | <b>FILED</b><br><b>TULARE COUNTY SUPERIOR COURT</b><br><b>VISALIA DIVISION</b><br><br><b>DEC 8 2005</b><br><br><b>LARAYNE CLEEK, CLERK</b><br><br><b>BY: _____</b> |  |                      |
| PEOPLE OF THE STATE OF CALIFORNIA vs.<br>DEFENDANT: <b>Ruben Madrigal</b> |                                 | DOB: <b>12-27-89</b>                                                                    |                                                                                                                                                                    |  | <b>VCF146315b</b> -A |
| AKA:                                                                      |                                 |                                                                                         |                                                                                                                                                                    |  | -B                   |
| CII#: <b>None</b>                                                         |                                 | <input type="checkbox"/> NOT PRESENT                                                    |                                                                                                                                                                    |  | -C                   |
| BOOKING #:                                                                |                                 | <input type="checkbox"/> AMENDED ABSTRACT                                               | -D                                                                                                                                                                 |  |                      |
| COMMITMENT TO STATE PRISON<br>ABSTRACT OF JUDGMENT                        |                                 |                                                                                         |                                                                                                                                                                    |  |                      |
| DATE OF HEARING<br><b>10-27-05</b>                                        | DEPT. NO.<br><b>5</b>           | JUDGE<br><b>Joseph Kalashian</b>                                                        |                                                                                                                                                                    |  |                      |
| CLERK<br><b>Dee Dee Hernandez</b>                                         | REPORTER<br><b>Lesia Mervin</b> | PROBATION NO. OR PROBATION OFFICER<br><b>PA-336248</b>                                  |                                                                                                                                                                    |  |                      |
| COUNSEL FOR PEOPLE<br><b>Kerri Rasner</b>                                 |                                 | COUNSEL FOR DEFENDANT<br><b>Doug Potratz</b> <input checked="" type="checkbox"/> APPTD. |                                                                                                                                                                    |  |                      |

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment  
 \_\_\_\_ (number of pages attached)

| CNT.     | CODE      | SECTION NO.      | CRIME                      | YEAR CRIME COMMITTED | DATE OF CONVICTION (MO./DATE/YEAR) | CONVICTED BY |       |          | TERM (L, M, U) | CONCURRENT | CONSECUTIVE 1/3 VIOLENT | CONSECUTIVE 1/3 NON-VIOLENT | CONSECUTIVE FULL TERM | INCOMPLETE SENTENCE (Refer to Item 3) | 664 STAY | PRINCIPAL OR CONSECUTIVE TIME IMPOSED |      |
|----------|-----------|------------------|----------------------------|----------------------|------------------------------------|--------------|-------|----------|----------------|------------|-------------------------|-----------------------------|-----------------------|---------------------------------------|----------|---------------------------------------|------|
|          |           |                  |                            |                      |                                    | JURY         | COURT | PLEA     |                |            |                         |                             |                       |                                       |          | YRS.                                  | MOS. |
| <b>2</b> | <b>PC</b> | <b>245(a)(2)</b> | <b>Assault w/a Firearm</b> | <b>2005</b>          | <b>09-29-05</b>                    |              |       | <b>x</b> | <b>m</b>       |            |                         |                             |                       |                                       |          | <b>3</b>                              |      |
|          |           |                  |                            |                      |                                    |              |       |          |                |            |                         |                             |                       |                                       |          |                                       |      |
|          |           |                  |                            |                      |                                    |              |       |          |                |            |                         |                             |                       |                                       |          |                                       |      |
|          |           |                  |                            |                      |                                    |              |       |          |                |            |                         |                             |                       |                                       |          |                                       |      |
|          |           |                  |                            |                      |                                    |              |       |          |                |            |                         |                             |                       |                                       |          |                                       |      |
|          |           |                  |                            |                      |                                    |              |       |          |                |            |                         |                             |                       |                                       |          |                                       |      |

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| CNT.     | ENHANCEMENT               | Y/S       | ENHANCEMENT | Y/S | ENHANCEMENT | Y/S | ENHANCEMENT | Y/S | TOTAL     |
|----------|---------------------------|-----------|-------------|-----|-------------|-----|-------------|-----|-----------|
| <b>2</b> | <b>12022.5(a)(1) PC</b>   | <b>4</b>  |             |     |             |     |             |     | <b>4</b>  |
| <b>2</b> | <b>12022.7(a) PC</b>      | <b>3</b>  |             |     |             |     |             |     | <b>3</b>  |
| <b>2</b> | <b>186.22(b)(1)(a) PC</b> | <b>10</b> |             |     |             |     |             |     | <b>10</b> |
|          |                           |           |             |     |             |     |             |     |           |
|          |                           |           |             |     |             |     |             |     |           |
|          |                           |           |             |     |             |     |             |     |           |

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| ENHANCEMENT | Y/S | ENHANCEMENT | Y/S | ENHANCEMENT | Y/S | ENHANCEMENT | Y/S | TOTAL |
|-------------|-----|-------------|-----|-------------|-----|-------------|-----|-------|
|             |     |             |     |             |     |             |     |       |
|             |     |             |     |             |     |             |     |       |
|             |     |             |     |             |     |             |     |       |
|             |     |             |     |             |     |             |     |       |

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

| COUNTY | CASE NUMBER |
|--------|-------------|
|        |             |
|        |             |
|        |             |

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: **20**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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**VCF146315b****-A****-B****-C****-D****9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):****a. Restitution Fine(s):**

Case A: **\$2,000** per PC 1202.4(b) forthwith per PC 2085.5; **\$2,000** per PC 1202.45 suspended unless parole is revoked.  
 Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
 Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
 Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

**b. Restitution per PC 1202.4(f):**

Case A: \$ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
 Case B: \$ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
 Case C: \$ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
 Case D: \$ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund

(\*List victim name(s) if known and amount breakdown in item 11, below.)

**c. Fine(s):**

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS  
 Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS  
 Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS  
 Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

**d. Lab Fee and Drug Program Fee:**

Case A: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).  
 Case B: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).  
 Case C: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).  
 Case D: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).

**10. TESTING**

- a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA pursuant to PC 296 c. ☒ other (specify): PC 186.30

**11. Other orders (specify):**

Pursuant to 1731.5 @ W&I, the defendant shall be delivered directly to the California Youth Authority. California Youth Authority is authorized to provide medical and/or dental care and/or administer psychotropic medications if appropriate

Restitution to victim Rufus Hernandez remain open

Defendant shall pay a \$20.00 Court Security Assessment purs to PC 1465.8 to be collected and disbursed by CDC who shall deposit such amount with the Tulare Court Security Fund

**12. EXECUTION OF SENTENCE IMPOSED**

- a. ☒ at initial sentencing hearing.  
 b. ☐ at resentencing per decision on appeal.  
 c. ☐ after revocation of probation.  
 d. ☐ at resentencing per recall of commitment. (PC 1170(d).)  
 e. ☐ other (specify):

**13. CREDIT FOR TIME SERVED**

| CASE                      | TOTAL CREDITS | ACTUAL                            | LOCAL CONDUCT                                                       |
|---------------------------|---------------|-----------------------------------|---------------------------------------------------------------------|
| A                         | 183           | 156                               | 27 <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1 |
| B                         |               |                                   | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1    |
| C                         |               |                                   | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1    |
| D                         |               |                                   | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1    |
| Date Sentence Pronounced: |               | Time Served in State Institution: |                                                                     |
| 10-27-05                  |               | DMH CDC CRC                       | [ ] [ ] [ ]                                                         |

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.  
 To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.  
☒ other (specify): **CYA**

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

CLERK OF THE COURT

12-8-05